

26STCV09423 26STCV09423

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-09-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C09%2F11%2F2026

Source SHA-256: 36a830454e1c3d64ed449627e91d5a6cfb810bb3aacd85562e1c61360615211e

Case Number: 26STCV09423 Hearing Date: September 11, 2026 Dept: 316

BACKGROUND

This is a lemon law matter.

On March 24, 2026,
Plaintiff Adolfo Posada filed a complaint against Defendants BMW of North America, LLC and McKenna Motors Torrance, Inc. Plaintiff alleges two causes of action stemming from his purchase of an allegedly defective vehicle.

On July 8, 2026,
Defendants filed a Motion for Judgment on the Pleadings.

On August 28, 2026,
Plaintiff filed an opposition.

On September 3, 2026,
Defendants filed a reply.

TENTATIVE RULING

Defendants' Motion for
Judgment on the Pleadings is DENIED.

LEGAL STANDARD

A defendant may move for
judgment on the pleadings when the "complaint does not state facts sufficient

to constitute a cause of action against the defendant.” (Code Civ. Proc., § 438, subds. (b)(1), (c)(1)(B)(ii).) “A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is . . . not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [citations omitted].)¿¿

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: that under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (See Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) The court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)¿¿

A motion for judgment on the pleadings may be granted when, “under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Southern California Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227 [citations omitted].) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (Ibid. [quoting Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216].)

DISCUSSION

I.

Meet
and Confer

Before filing a motion for judgment of the pleadings (“MJOP”), the moving party must meet and confer in person, by telephone or by video conference with the opposing party. (See Code Civ. Proc., § 439, subd. (a).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the

motion for judgment on the pleadings.” (Id. at subd. (a)(4).)

Here, Defendants attempted to meet and confer by telephone, but Plaintiff’s counsel refused to do so. (See Miller, Decl., ¶ 3.) Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Proc., § 439, subd. (a).) Despite this, the Court shall consider the merits of Defendants’ MJOP. (See id. at subd. (a)(4).)

II.

Breach
of Express Warranty (Cause of Action No. 1)

“A plaintiff pursuing an action under the Song-Beverly Act has the burden to prove the following elements: (1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798-799.) Thus, to sustain a breach of express warranty cause of action, a nonconformity must have been subject to multiple unsuccessful repair attempts. (Civ. Code § 1793.2; see also Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1209 [“A single attempt does not meet the statutory threshold. . . .”].)

The statute also provides that “[i]f the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B).” (Civ. Code, § 1793.2, subd. (d)(2).) “‘New motor vehicle’ includes . . . a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty.” (Civ. Code, § 1793.22, subd. (e)(2) [emphasis added].)

In Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189, the Supreme Court held that “a motor vehicle

purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (Id. at p. 196.) The Rodriguez court found that against the backdrop of the Song-Beverly Act, "it would be anomalous to construe 'other motor vehicle sold with a manufacturer's new car warranty' (§ 1793.22, subd. (e)(2)) to include any used car sold by a distributor or retailer with a preexisting, unexpired manufacturer's warranty." (Id. at p. 202.)

Lastly,

"[n]otwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean 'new' goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter except: [¶] (a) It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties. (§ 1795.5, subd. (a).)" (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 339.) "But the assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities. Where the manufacturer sells directly to the public, however, it takes on the role of a retailer." (Id. at 340.)

A.

Purchase
in California

Defendants contend this claim is subject to judgment on the pleadings because Plaintiff does not specifically allege the subject vehicle was purchased in California. (See MJOP, p. 5:15-28.) However, Plaintiff states that he resides in Los Angeles and was offered the subject warranty in the same city. (Complaint, ¶¶ 1, 4.) There is no allegation that the subject vehicle was purchased outside of California. The Court finds there is a reasonable inference that the subject vehicle was purchased in California. Accordingly, there is a factual issue as

to where the subject vehicle was purchased which requires further evidentiary resolution. (See *Southern California Edison Co. v. City of Victorville* (2013) 217 Cal.App.4th 218, 227.) The MJOP will not be granted on this ground.

B.

New

Car Warranty

Defendants also contend that this claim is subject to judgment on the pleadings because Plaintiff purchased the subject vehicle used.^[1] (See MJOP, pp. 6:1-10:5.) However, the Court finds this argument unavailing at this stage of the proceedings for two reasons. First, Plaintiff alleges that “Defendant BMW gave Plaintiff(s) a written warranty contract,” (see Compl., ¶ 8) and there is no indication that this alleged warranty contract was an unexpired new car warranty contract as discussed in *Rodriguez*. Accepting the allegation as true, the Court finds this is sufficient to state a cause of action as Plaintiff has alleged a new warranty was issued with the sale of the subject vehicle. (See *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196.) Defendants do not address this allegation in the motion.

Second, Plaintiff alleges that when Plaintiff purchased the subject vehicle, Defendants offered a certified pre-owned warranty in addition to the warranty referenced above. (See Compl., ¶ 8 [“Defendant also gave an additional warranty for the vehicle being certified pre-owned, which included additional coverage for the earlier of 12 Months (1 Year) or Unlimited Miles miles.”].) The Court finds that this qualifies as a new warranty issued with the sale of the subject vehicle. (See *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196.)

Despite the allegation that Defendant presented Plaintiff with a new certified pre-owned warranty, Defendants contend it is not the equivalent to a new car warranty. Defendants argue that for “the CPO warranty to be deemed a ‘manufacturer’s new car warranty,’ it would—at a minimum—need to provide the same level of coverage as that original manufacturer’s warranty.” (MJOP, p. 8:9-11.) However, Defendants do not provide any binding authority for this proposition,^[2] nor does *Rodriguez* explicitly hold that a certified pre-owned warranty cannot qualify as a “new car warranty”. Thus, Plaintiff’s claim is not barred because it is premised on a certified pre-owned warranty offered at the time of

purchase.

C.

Requirements
for Liability

Defendants also contend this claim is subject to judgment on the pleadings because Plaintiff did not specifically state how many times the subject vehicle was brought in for repairs. (See MJOP, p. 11:5-11.) However, Plaintiff alleges that there were “a reasonable number of repair attempts.” (Compl., ¶ 19.) When accepted as true, this allegation is sufficient to satisfy the multiple repair attempts requirement at this stage. (See Civ. Code § 1793.2; see also *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1209.) Accordingly, Defendants are not entitled to judgment as a matter of law on this ground. (See *Southern California Edison Co. v. City of Victorville* (2013) 217 Cal.App.4th 218, 227.)

For these reasons, the Court finds that Defendants are not entitled to judgment as a matter of law as to the first cause of action.

III.

Negligent
Repair

The Court finds that this cause of action is not barred by the economic loss rule.

To state a cause of action for negligence, a plaintiff must allege facts to show that: (1) defendant owed plaintiff a duty of care; (2) defendant breached that duty of care; (3) defendant’s breach actually and proximately caused plaintiff’s injury; and (4) plaintiff suffered damages. (See *Achay v. Huntington Beach Union High School District* (2022) 80 Cal.App.5th 528, 535.)

The economic loss rule posits that a purchaser of a product that does not live up to the buyer’s expectations can only recover in contract and not tort, “unless [the purchaser]

can demonstrate harm above and beyond a broken contractual promise.” (Food

Safety Net Services v. Eco Safe Systems USA, Inc. (2012) 209 Cal.App.4th 1118, 1130 [quoting Robinson Helicopter Co., Inc. v. Dana

Corp. (2004) 34 Cal.4th

979, 988].) “In general, there

is no recovery in tort for negligently inflicted ‘purely economic losses,’

meaning financial harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922 (Sheen).)

Typically, plaintiffs may only recover in tort for a breach of contract where:

“(1) the breach is accompanied by a traditional common law tort, such as fraud

or conversion; (2) the means used to breach the contract are tortious,

involving deceit or undue coercion or; (3) one party intentionally breaches the

contract intending or knowing that such a breach will cause severe, unmitigable

harm in the form of mental anguish, personal hardship, or substantial

consequential damages.” (Erich v. Menezes (1999) 21 Cal.4th 543, 553-554.)

Here, Defendants contend

this cause of action is subject to judgment on the pleadings because it is

barred by the economic loss rule. (See MJOP, p. 11:14-13:2.) However, this

cause of action is not based on Defendant South Bay BMW’s alleged failure to

repair the subject vehicle to

conform to the

applicable warranty. Rather, it is based on Defendant South Bay BMW’s alleged

failure to repair the subject vehicle to conform with industry standards. (See Compl., ¶ 30 [“Defendant

South Bay BMW owed a duty to Plaintiff(s) to use ordinary care and skill in

storage, preparation and repair of the Subject Vehicle in accordance with

industry standards.”].) Thus, the economic loss rule does not apply because

Plaintiff is not alleging a contractual breach in which he is seeking tort

relief. (See Food Safety Net Services v. Eco Safe Systems USA, Inc. (2012) 209 Cal.App.4th 1118, 1130.)

CONCLUSION

For the foregoing

reasons, Defendants’ Motion for Judgment on the Pleadings is DENIED.

[1] Plaintiff contends there are no

allegations suggesting that the subject vehicle was used. However, this is incorrect

as evidenced by Plaintiff’s own claim that the vehicle came with a certified

pre-owned warranty. (See Compl., ¶ 8 [“Defendant also gave an additional

warranty for the vehicle being certified pre-owned, which included additional

coverage for the earlier of 12 Months (1 Year) or Unlimited Miles miles."].)

[2] Defendants refer to a series of unpublished federal court cases to support their position. However, these cases are not binding and do not control the Court's decision.